

JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR.
(JUDICIAL DEPARTMENT)

Criminal Appeal No.167/2011.

Muhammad Akhtar, etc.

Vs

The State

Criminal Revision No.113/2011.

Allah Yar

Vs

The State, etc.

JUDGMENT

DATE OF HEARING: 08.09.2021.

APPELLANTs BY: Mirza Muhammad Azam, Advocate with appellants (present on bail).

RESPONDENT BY: Malik Muhammad Latif, Additional Prosecutor General.

Syed Zeeshan Haider, Advocate for the complainant.

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MUHAMMAD AMJAD RAFIQ, J: - Prosecution for the murder of Khadim Hussain was launched against Muhammad Akhtar alias Muhammad Akram, Muhammad Anser along with Shafqat and Saif-ul-Malook, through case FIR No.45/2010 dated 18.03.2010 registered under section 302/34 PPC at police station Ghumandpur, District Bahawalnagar. The learned trial court, vide judgment dated 28.03.2011, acquitted Shafqat and Saif-ul-Malook accused from the charge, whereas, Muhammad Akhtar and Muhammad Anser (hereinafter to be referred as accused/appellants), were convicted and sentenced as under;

Imprisonment for life u/s 302(b) read with section 34 PPC with compensation of Rs.100,000/- each under section 544-A Cr.P.C to be paid to legal heirs of deceased, in case of default to further undergo simple imprisonment for six months each. Benefit of section 382-B Cr.P.C. was extended.

Criminal Appeal No.167/2011 has been brought by accused/appellants to question their above conviction and sentence, whereas Criminal

Revision No.113/2011 has been filed by Allah Yar (complainant) seeking enhancement of sentence qua both the above accused/appellants. Both these matters are now under consideration before this Court as subject of instant judgment.

2. Allah Yar complainant (PW.6) led the story of prosecution narrated in complaint (Ex.PC), reproduced in formal FIR (Ex.PC/1) that it was the morning of 18th March, 2010 when at 08.30 am, he along with his brother Khadim Hussain (deceased) was irrigating the fields, Muhammad Akhtar alias Muhammad Akram and Anser (accused/appellants) armed with 30-bore pistols and Shafqat carrying a knife came there. Shafqat raised lalkara to teach them a lesson for yesterday's quarrel, upon which Muhammad Akhtar alias Muhammad Akram fired with his pistol which hit between the neck and chest of Khadim Hussain (deceased). The fire shot by Anser landed on the chest of Khadim Hussain below left clavicle, who fell down; whereupon, Shafqat attempted knife blow which was stopped by complainant by his right hand. Meanwhile, Saifal alias Babli, brother of Muhammad Akhtar alias Muhammad Akram (accused), came on a motorcycle, boarded them all and decamped from the place of crime. The occurrence was witnessed by Mukhtar Ahmad and Nasarullah, who being guests were present there. Khadim Hussain was being shifted to Hospital in a dala (دالا), when he succumbed to the injuries.

The motive for the occurrence was of mischievous act of Anser accused who on 16.03.2010 had taken snaps of Mst. Shamim, wife of Khadim Hussain deceased, whereupon, Khadim Hussain had quarreled with him. Second altercation in the sequence on 17.03.2010 took place between Khadim and Muhammad Akhtar alias Muhammad Akram which finally resulted into present occurrence on 18.03.2010.

3. Leaving the dead body of Khadim Hussain in the hospital under the guard of witnesses, complainant moved the complaint at the police station, on the basis of which Muhammad Shabbir Sub-Inspector/ Investigating Officer (PW-9) drafted formal FIR and proceeded to the

hospital and carried out investigation, the details whereof are available in his statement recorded before the court, therefore, need not be reproduced here. Suffice to say that after completion of all requisite formalities, report under section 173 Cr.P.C. was submitted in the Court.

4. The accused persons were charge sheeted, to which they pleaded not guilty and claimed to be tried. During trial the prosecution examined its witnesses in sequence and produce documents as under:-

“complainant Allah Yar (PW-6) and Mukhtar Ahmad (PW-7) deposed about the ocular account; Dr. Husnain, Medical Officer (PW-3) who had conducted post mortem examination of Khadim Hussain deceased and Muhammad Shabbir Sub-Inspector (PW-09) who had conducted investigation in this case. Rest of the witnesses being formal in nature made depositions about their respective functions performed during the course of investigation. After oral evidence the learned Rao Muhammad Riaz Khan, Deputy District Public Prosecutor tendered in documentary evidence the report of Chemical Examiner Ex.PJ and reports of Serologist as Ex.PK and Ex.PL and with that closed the prosecution evidence”.

The accused when examined under section 342 Cr.P.C. denied the prosecution evidence and produced one Munawar Ali as DW-1 in their defence, however, neither of them appeared as his own witness. In answer to a question “Have you anything else to say”, Muhammad Akhtar alias Muhammad Akram accused/appellant made the following reply:-

“I am innocent. In fact due to some understanding Khadim Hussain deceased as well as his brother Allah Yar complainant leveled the allegation against my co-accused Muhammad Anser my brother that he has taken the snaps of Mst. Shamim Bibi wife of Khadim Hussain deceased on his cell phone about 3/4 days prior to this occurrence. I and my brother Anser tried to satisfy them by all possible means that Anser had not taken any such snaps of wife of Khadim Hussain but in spite of that they bore grudge and Khadim Hussain deceased had an altercation and scuffle with me a day before the occurrence and gave him beatings, whereupon Khadim Hussain threatened me of dire consequences. On the day of occurrence there was Qull Khawani of Mst. Mumtaz Begum d/o Falak Sher resident of Bheni Abdur Rehman Khari and I along with Muhammad Iqbal, Muhammad Munawar and Sarfran attended the above said persons and when we reached near the house of complainant party at a distance of about one acre, all of a sudden Khadim Hussain deceased and his brother Allah Yar Complainant who were hiding themselves in the wheat crop of Munir Wattoo near their house, came in front of me and launched an attack upon me. Both of them started giving me beating. In support of their other relatives also attracted at the place of occurrence. I apprehending danger to my life at the hands of the complainant party, I took out my licensed pistol which I was having as a precaution because the complainant had already extended threats to me but in spite of that Khadim Hussain deceased caught hold of me and tried to snatch the pistol and during this grappling/scuffle my pistol which was semi-automatic was went off accidentally, as a result of which Khadim Hussain was injured. In fact, it was complainant party who was aggressor. My companion Muhammad Munawar, Sarfraz and Iqbal were the actual eye witnesses of the occurrence. None of the PW namely Mukhtar Ahmad and Nasrullah were present at the time and place of occurrence when Khadim Hussain got injured and fell down on the ground, Allah Yar complainant and other persons who had attracted at the place of occurrence

and were related to the complainant party started attending Khadim Hussain and by finding a chance I saved my life by running from the scene of occurrence. On the following day I myself appeared before the I.O. and stated the above said facts before him and also produced my licensed pistol but the I.O. being in league with the complainant party did not record my actual defence version nor he recorded the statements of my defence witnesses namely Muhammad Munawar, Muhammad Sarfraz and Iqbal who appeared with me before the I.O. and supported my defence version. Numerous persons of the locality numbering more than 40/50 appeared before the I.O. and stated that in fact it was Complainant party who was aggressor. At the time of occurrence none of my co-accused was with me. They have been involved by widening the net by the complainant party. Previously there was no ill will or any kind of rivalry between the parties except misunderstanding of the taking of snaps of the wife of Khadim Hussain and I had no intention whatsoever or motive to commit the murder of Khadim Hussain deceased.”

On similar question to other accused persons, they all came out with the same reply as made by Muhammad Akhtar alias Muhammad Akram. On conclusion of the trial above conviction and sentence was recorded against Muhammad Akhtar and Muhammad Anser, whereas, remaining two accused were acquitted.

5. Learned counsel for the accused/appellants argued that presence of witnesses at the place of occurrence is doubtful, Shafqat and Saif-ul-Malook accused stood acquitted on the same set of evidence; empties were sent after the arrest of accused, in this way recovery of pistol and matching report of PFSA becomes inconsequential; motive has not been proved; plea of accused Akhtar is more plausible and has weight in contrast to shaky story of prosecution; accused Anser was found innocent during investigation and nothing was recovered from his possession and that it was an accident for which accused/appellants cannot be held responsible as Muhammad Akhtar alias Muhammad Akram also received injuries during the occurrence.

6. On the other hand, Learned Additional Prosecutor General came out with straight forward stance that it is a case of prompt FIR, prompt Post Mortem examination; presence of two injuries in proximity to each other with different description rules out hypothesis of innocence of accused Muhammad Akhtar alias Muhammad Akram who did not act in private defence rather it was an intentional murder because complainant or the deceased were not armed at the time of occurrence.

7. Learned counsel for the complainant has also put vehemence in arguments of learned Additional Prosecutor General by adding that it

was day light occurrence, there was no mistaken identity; two fires at the body of deceased with no injuries to others who were beating him speaks in clear terms the criminal liability of Muhammad Akhtar alias Muhammad Akram accused. Further contends that duration of injuries as observed by the doctor on the person of Muhammad Akhtar though matches the time of occurrence but defence has lost sight of allegations that there was an altercation one day prior to present occurrence as well; further states that even doctor has did not rule out the possibility of fabrication in injuries. However, learned counsel was at a low tone while defending the conviction and sentence awarded to Ansar accused/appellant.

8. Proponents were heard; record perused.

9. In order to keep the things clear and straight, from the evidence available on the record especially the defence version taken by Muhammad Akhtar alias Muhammad Akram accused/appellant in his statement under section 342 Cr.P.C, it becomes obviously clear that the occurrence and the participation of said Muhammad Akram alias Muhammad Akhtar in the commission of the crime was not denied, though both the parties have come out with their respective stance with regard to mode & manner and the venue of occurrence. Now, it is for the Court to see as which of the party has come out with truth or at least with an appealable and plausible version.

10. The occurrence took place on 18.03.2010 at 08:30 a.m. and the FIR was lodged at 09:30 a.m. on the same day, the police station was at the distance of 06-k.m. from the place of occurrence as alleged by the prosecution, therefore, for all intent and purposes it was a prompt FIR. However, PW-6 and PW-7 while deposing before the Court state that fire shot by Muhammad Akhtar hit on the chest and neck of the deceased, whereas, fire attributed to Anser hit underneath his left flank, as such, this contradiction is examined in the light of post mortem examination, which was conducted at 10:45 a.m. after two hours of the alleged

occurrence wherein Dr. Husnain (PW-3) observed following three injuries on the person of the deceased: -

INJURIES:-

1. *A lacerated oval wound about 1 cm in diameter just below the neck in the mid line in the first intercostals space. Burning and tattooing was present. Its margins were inverted and abraded.*
2. *A lacerated wound with inverted margins about ½ cm in diameter just below the left clavicle.*
3. *A lacerated wound about 1 cm in diameter with everted margin on the right side of the back just along the medial aspect of scapula.*

Injury No.1 carries burning and tattooing which shows that fire was made from a very close range, second fire does not have same characteristics as that of injury No.1 though stands in proximity with injury No.1 yet with no burning and blackening, third injury is an exit wound. Injury No.1 attributed to Muhammad Akhtar alias Muhammad Akram accused, whereas injury No.2 was the result of fire attributed to Anser accused. The distance *inter-se* the accused and victim as shown in site plan (Ex.PA) is one Karam and 1 ½ Karam respectively. Obviously, person firing and the person receiving the injuries are not expected to remain static and further even the distance of bullet emitting through muzzle of pistol is not measured from the place where the accused is present, rather it is measured from arm's length of the assailants. A karam is measured as equivalent to five feet approx; arm's length would definitely further reduce such distance, as such the situation came within the range and matches the effect shown as of presence of burning and tattooing. PW-6 states that fire was made by Muhammad Akhtar alias Muhammad Akram from a distance of one pace. PW-6 & PW-7 state in examination in chief that fire of Muhammad Akhtar alias Muhammad Akram hit on the neck and chest of Khadim Hussain which cover both the entry wounds as reflected in the postmortem, whereas fire of Anser described by them as landed on the left side of chest underneath flank of Khadim Hussain. Such injury on the flank does not exist in the postmortem report. So, at the most an exit wound can be calculated for the fire of Anser accused.

11. Group of witnesses who led the ocular account consisted of PW-6 & PW-7 whose presence at the place of occurrence was substantiated through their straight forward testimony when PW-6 says in the words as under:-

“The residential house of accused persons is at a distance of 10 acres from the place of occurrence towards east and our residence is at a distance of one acre from the place of occurrence toward west, however we both the parties live in the same village Botian Wali”.

A suggestion was put by the defence about residence of Mukhtar PW, to which he responded as under;

“It is correct that Mukhtar Ahmad PW is son of my real maternal uncle and his house is also adjacent to my house”.

Above expression does not leave any room for doubt about their presence at the relevant time at the scene of crime as resident of same locality. During cross examination, in reply to question put by defence, PW-6 responded as under:-

“There was absolutely no dispute between both the parties of any kind prior to this occurrence except the dispute of taking the snaps by Anser accused of Mst. Shamim Bibi”.

This question has left no option except to admission of motive which also finds its place in similar way in the statement of accused/appellant Muhammad Akhtar alias Muhammad Akram recorded u/s 342 Cr. P.C.

12. Two crime empties were recovered from the place of occurrence on 18.03.2010, Muhammad Akhtar alias Muhammad Akram accused was arrested on 25.03.2010, empties were sent to Punjab Forensic Science Agency, Lahore on 01.04.2010 after his arrest, pistol was recovered on the lead of said accused on 07.04.2010 and the same was sent to Punjab Forensic Science Agency, Lahore on 19.04.2010 and matching report of said crime empties with the pistol recovered from the accused was received. As the empties were sent after the arrest of the accused, therefore, no inference can be drawn with respect to effect of matching report on the culpability of Muhammad Akhtar alias Muhammad Akram accused, so recovery does not favour the prosecution in this case.

13. Motive has been attributed in this case as taking of snaps of Mst. Shameem Bibi, wife of Khadim Hussain deceased and due to such indecent act, present occurrence took place. No evidence was brought on record with respect to proof of motive in this case except a suggestion during cross examination. Neither Mst. Shamim appeared during the investigation nor before the Court, even mobile phone through which such snaps were taken has not been taken into possession nor was produced during the trial. However, as a matter-of-fact Muhammad Akhtar alias Muhammad Akram while answering to a question put to him during his statement under section 342 Cr.P.C. in a manner admitted the differences between the parties and the reason was almost the same which had formed the motive part, as alleged by the prosecution. In this way prosecution case gets support of motive as well.

14. Although the prosecution had specifically named Anser as an accused and a fire shot to the deceased was also attributed to him, but no crime weapon could be recovered from him and further during the course of investigation the Investigating Officer had opined that Anser and Shafqat accused were though present at the place of occurrence but they were empty handed. When this aspect of the matter is gauged by keeping in mind that Muhammad Akhtar alias Muhammad Akram had admitted his participation, the crime weapon recovered on his lead matched with the crime empties collected from the spot and further from the medical evidence, though two fire shots carried somewhat different descriptions with regard to distance, but if the fire may have been shot by one person, by one weapon, at one time and may have been hit to one person, even then the same could differ in terms of distance from which these were caused. Consequently, it can safely be inferred from the above that Anser accused/appellant was falsely implicated in this case; prosecution has failed miserably to establish the guilt against him in this case. As such, **this appeal to the extent of Anser succeeds, his conviction and sentence as recorded by the learned trial court is set-aside and he is acquitted of the charge against him. He is present before the court on bail; his sureties are discharged from the liability.**

15. As to the case of Muhammad Akhtar alias Muhammad Akram, as detailed above, he has admitted the occurrence but has come up with a defence version. In his defence, one witness Munawar Ali DW-1 was also produced in evidence but the defence version could not be established in any manner for the reason that it has nowhere come in the evidence that complainant party carried any sort of weapon with them when purportedly they launched attack on the accused party. This being the position, there was no justification at all for the accused/appellant to have exercised the right of self defence. This aspect gets further strength by the fact that after scrutiny of the medical evidence, as discussed above, it has been proved that both the shots were fired by Muhammad Akhtar alias Muhammad Akram alone. Had Muhammad Akhtar fired in exercise of self defence, he could only use the force which was sufficient to ward off the attack, but here in this case since the complainant party had no weapon with them, therefore, repeated fire shots by him by no means advance his plea of self defence, nor the medical evidence supports that pistol went off and fire accidentally hit the deceased, in that case it must have only one fire. In order to prove his plea accused/appellant did not enter on to his defence while appearing as his own witness u/s 340 (2) Cr. P.C. nor filed written statement as required u/s 265F Cr.P.C.; therefore, calling of defence witness directly somewhat raises question about legality of such evidence. Though courts are in practice of calling defence witnesses on the request of accused, yet whether such exercise is within the permissible legal domain, is a question that can be thrashed by highlighting the relevant law on the subject which exercise is done in the next paragraph.

16. The accused (Muhammad Akhtar alias Muhammad Akram) has raised a plea of defence that deceased assaulted upon him and he in exercise of right of private defence took out a pistol to deter the attacker which pistol during scuffle went off accidentally, such plea accused was obliged to prove by adducing evidence, mere raising it as a stance through his suggestions during cross examination on PWs or in his statement u/s 342 Cr. P.C. does not fulfill the requirement of law. It is

trite that prosecution is bound to prove the guilt against the accused beyond reasonable doubt and accused is not obliged to discharge the burden of proof; any admission or plea raised by him would have no value and cannot be used against the accused as settled by Honourable Supreme court in different reported cases; all such reported cases have been given space in the recent Judgment “Ali Ahmad and another versus The State and others.” (PLD 2020 SC 201). Through said case it has been enunciated that once the prosecution proves its case against the accused, then burden shifts to the accused to prove his plea or admission if any. In this case prosecution remained successful in proving the charge against the accused beyond reasonable doubt; accused should have discharged evidential burden to dislodge the case of prosecution for taking it to falling under any of General Exception under PPC or, out of the ambit of Qatal-a-amd. In another case reported as “The STATE through P.G. Sindh and others versus AHMED UMER SHEIKH and others” (2021 S C M R 873), Honourable supreme court has observed that it is not the legal burden but the evidential burden that shifts to the accused, if he had any special knowledge of circumstances of the case.

17. In this case prosecution has proved unlawful killing of Khadim Hussain at the hands of Muhammad Akhtar alias Muhammad Akram; therefore, presumption that it was intentional killing would run against him until he rebuts it. It is trite that once the prosecution proves a primary fact, the burden to dislodge the presumed fact would be on the accused; it has been explained principally by the theory of an English Jurist as under;

“according to theory of Professor Thayer, a leading exponent, proof of the primary fact creates an evidential burden in the opponent with respect to presumed fact. Therefore, presumed fact will be taken as proved unless the opponent adduces some evidence to rebut the presumption, though he need not go so far as disproving it. If the opponent does this, the presumption disappears and the normal burden of proof applies as if the presumption had never existed. This sudden disappearance has led to this theory being also known as the “**bursting bubble**” theory. Professor Glanville Williams describes presumptions governed by this theory as ‘evidential presumptions’. In that case, accused would acquire at the most evidential burden as to the presumed fact”.

(An extract from a book “Murphy on Evidence”, 6th Edition by Peter Murphy)

18. Leading evidence by the accused to dislodge a proved fact is matter of procedure; mere stating a fact in a statement under section 342 Cr. P.C does not fulfill that requirement. Ours’ is the adversarial system which provides equal opportunity to both the parties to prosecute or defend pursuant to fundamental right of fair trial and due process guaranteed through the Constitution of Islamic Republic of Pakistan. Barring some situations, scheme of criminal procedure usually requires “*he who alleges or levels the allegation of commission of offence would lead the evidence first*”. In a sessions trial, leading of evidence is regulated under section 265-F of Cr. P.C., which is reproduced for reference:-

“265-F. Evidence for prosecution. (1) *If the accused does not plead guilty or the Court in its discretion does not convict him on his plea, the Court shall proceed to hear the complainant (if any) and take all such evidence as may be produced in support of the prosecution.*

Provided that the Court shall not be bound to hear any person as complainant in any case in which the complaint has been made by a Court.

(2) *The Court shall ascertain from the public prosecutor or, as the case may be, from the complainant, the names of any persons likely to be acquainted with the facts of the case and to be able to give evidence for the prosecution, and shall summon such persons to give evidence before it.*

(3) *The Court may refuse to summon any such witness, if it is of opinion that such witness is being called for the purpose of vexation or delay or defeating the ends of justice. Such ground shall be recorded by the Court in writing.*

(4) *When the examination of the witnesses for the prosecution and the examination (if any) of the accused are concluded, the accused shall be asked whether he means to adduce evidence.*

5) *If the accused puts in any written statement, the Court shall file it with the record.*

6) *If the accused, or any one of several accused, says that he means to adduce evidence, the Court shall call on the accused to enter on his defence and produce his evidence.*

7) *If the accused or any one or several accused, after entering on his defence, applies to the Court to issue any process for compelling the attendance of any witness for examination or the production of any document or other thing, the Court shall issue such process unless it considers that the application is made for the purpose of vexation or delay or defeating the ends of justice such ground shall be recorded by the Court in writing.”*

It sets a pattern of order of recording of deposition. This section says that at first occasion court shall hear the complainant and then take all such evidence as may be produced in support of the prosecution; for that purpose, court shall require the prosecutor or the complainant to name the persons likely to be acquainted with the facts of the case and to be able to give evidence, and then evidence of witnesses shall follow. Similarly, when the evidence of prosecution and the examination of accused are concluded, accused shall be asked whether he means to adduce evidence, and if he opts to adduce evidence, then as per above section, there are two methods to adduce evidence by the accused which are as follows;

- i. *he would put in any written statement, or*
- ii. *adduce evidence.*

The use of word “written statement” is meaningful in the sense that evidence of prosecution against the accused has been adduced on oath; therefore, he must defy the allegation in the same way i.e., on oath. Statement oral or written does require that it should be made on oath to transform it into admissible format. As a corollary to written statement on oath, light and guidance can also be taken with reference to written statement defined in C.P.C., it is being part of pleadings as mentioned under Order VI Rule 1 of Code of Civil Procedure, 1908 (CPC) which is required in a suit and it carries certain legal requisites that it must have verification (on oath or solemn affirmation) at the bottom that the contents of such and such paragraphs are based on his personal knowledge or from information received, as required under Order VI Rule 15 of CPC.

If the accused does not want to appear as his own witness but put on any written statement, then it must be in that format as highlighted above, so as to help the court to consider the facts based on oath as probable if it wishes to summon any material witness as DW or CW, or call for any document, indicated in said written statement, which is necessary for the just decision of a case. As per provisions of above section written statement of accused shall be filed with the record. It can be used as an evidence. Reliance is placed on the case “MUHAMMAD

AFZAL versus The STATE” (2013 P Cr. L J 591). Even it is a bundle of information to exercise inquisitorial powers by the court. The case reported as “Harbhajan Singh v. State of Punjab and another” (**AIR 1966 Supreme Court 97**) throws light on the importance and utilization of written statement.

If the accused means to adduce evidence, the court shall call on the accused to enter on his defence and produce his evidence. “Entering on to defence” means accused shall appear as his own witness as required under section 340 (2) of Cr. P.C for recording of his statement and then face the cross examination as required under Article 44 of Qanun-e-Shahadat Order, 1984; thereafter, he shall produce the witnesses in support of his evidence in the same fashion as it was done by the complainant in first episode of trial. The accused has also been provided facility of calling his witnesses through the court process once he entered on his defence. Witness is usually called to support a stance raised by a party; if party is not examined first, there is no meaning for appearance of a witness.

19. Above discussion manifests that defence witnesses could only be called after the accused enters on his defence as a witness; appearing as a witness by the accused though as per section 340 (2) Cr. P.C. is mandatory but the Honourable Supreme Court in a case “Mst. AMEER KHATUN versus FAIZ AHMAD and others” (**PLD 1991 SC 787**) has declared such provision as against the Article 13 of the Constitution of Islamic Republic of Pakistan, 1973 on the principle that no person shall be compelled for self-incrimination.

20. As per above observation, it is now optional for the accused to appear as his own witness and he cannot be compelled; yet if he does not appear as a witness, he can go for an alternate by filing a written statement to avoid any cross examination, yet in this way he would be in a position to produce his witnesses in support of averments of written statement. This observation is further elaborated in the terms that

Evidence has been defined by Article 2(c) of Qanun-e-Shahadat Order, 1984 as under:-

(c) “evidence” includes

- (i) all statements which the Court permits or requires to be made before it by witnesses, in relation to matters of fact under inquiry, such statements are called oral evidence, and*
- (ii) all documents produced for the inspection of the Court; such documents are called documentary evidence;”*

All such statements shall be made on oath as required by section 5 of Oath Act, 1873; therefore, when these statements are made an oath, it is called that witnesses have been testified. Such testified statements become deposition and are regarded as testimony of witnesses of either party. The word “testimony” has been derived from a Latin word “Testis”, its fragments “Te” stands for “Tri” or third and “Stis” means “stance” or “stand”; so “testis” means “third stand/stance”. Usually both the parties bring on record their respective stances which could only be verified or defied with a third stand/stance and that third stance is in the form of witness to the parties. All that shows that a witness in support of party would only be called if the party first raises a stance through approved legal procedures. The intent and purpose of legislature to balance the opportunities for adducing evidence by both the parties is reflected from the above section which in fact saves the fundamental right of fair trial; it must be followed by all subordinate courts conducting trials under Chapter XXII-A of Cr. P.C.

21. Having failed to establish the plea of self defence, this court has no other view except to hold that in fact it was Muhammad Akhtar alias Muhammad Akram who had made repeated fire shots on deceased Khadim Hussain and this fact stands fully established through the prosecution evidence. For what has been discussed, it is crystal clear that accused/appellant has not brought on record his stance and defence witness in the process through formal ways; therefore, his plea could not be substantiated during the trial which disentitles him to claim acquittal. Learned trial court, keeping in view some mitigating aspects like

inconsequential effect of recovery and no previous enmity, has already extended leniency to the accused/appellant in terms of sentence awarded to him which perfectly confirms to principle of sentencing known as “**Just desert**” it requires the court that sentence must commensurate with the act of offender which is justified in this case. **In the sequel, the appeal filed by Muhammad Akhtar alias Muhammad Akram is dismissed, his conviction and sentence awarded by learned trial court is maintained. He is present on bail; he was ordered to be taken into custody and be sent to the jail for serving out of his sentence. His sureties are discharged.**

22. In the light of observation made above while dismissing the appeal of Muhammad Akhtar alias Muhammad Akram and by acceptance of appeal of Anser, **Criminal Revision No.113/2011 which has been filed by Allah Yar (complainant) seeking enhancement of sentence qua both the above accused/appellants has no force which is dismissed.** The case property, if any, be disposed of in accordance with law and the record of the learned trial court be sent back immediately.

(Muhammad Amjad Rafiq)
Judge.

Approved for reporting.

Judge.

*Javed**